

The relationship of father and child a mere circumstance of evidence. — “The circumstance,” he said, “of one or more of the nominees being a child or children of the purchaser, is held to operate by *rebutting the resulting trust*; and it has been determined in so many cases that the nominee being a child shall have such operation as a *circumstance of evidence*, that it would be disturbing *landmarks if [*171] we suffered either of these propositions to be called into question; — namely, That such circumstance shall rebut the resulting trust; and, That it shall do so as a circumstance of evidence. I think it would have been a more simple doctrine, if the children had been considered as *purchasers for valuable consideration*. This way of considering it would have shut out all the circumstances of evidence which have found their way into many of the cases, and would have prevented some very nice distinctions, and not very easy to be understood. Considering it as a circumstance of evidence, there must, of course, be evidence admitted on the other side. Thus it was resolved into a question of intent, which was getting into a very wide sea without very certain guides.”

The difficulties arising from the light in which the question has been viewed will amply appear from the numerous refined distinctions upon which the Court from time to time has been called upon to adjudicate.

1. **Case of the child being an infant.** — A distinction was formerly taken where the child was an *infant* (*a*); for a parent, it is said, could scarcely have intended to bestow a separate and independent provision upon one utterly incapable of undertaking the management of it. But still more improbable was the supposition that an infant should have been selected as a trustee (*b*), and accordingly the notion has long since been overruled (*c*); nay, the infancy of the

(a) 2 Freem. 128, c. 151; and see *Binion v. Stone*, Id. 169; S. C. Nels. 68.

(b) See *suprà*, p. 37.

(c) *Lamplugh v. Lamplugh*, 1 P. W. 111; *Lady Gorge's case*, cited 2

Sw. 600; *Skeats v. Skeats*, 2 Y. & C. C. 9; *Christy v. Courtenay*, 13 Beav. 96; *Collinson v. Collinson*, 3 De G. M. & G. 403; *Mumma v. Mumma*, 2 Vern. 19; *Finch v. Finch*, 15 Ves. 43, &c.